

DotCloud Consulting

29 Plaine st
Midstream Hill Estate
Midstream
1692
(c) 0723807212

Non-Disclosure Agreement (NDA)

Effective Date: _____

1. Parties

1.1 DotCloud: DotCloud Consulting CC (Registration No. 2011/102923/23), with its registered address and principal place of business as set out in the letterhead above ("DotCloud" or the "Disclosing Party").

1.2 Receiving Party: the entity completing the details below ("Receiving Party").

Receiving Party / Candidate Company Details

Legal Entity Name: _____

Registration Number: _____

Jurisdiction of Incorporation: _____

Registered Address: _____

Authorised Representative (Full Name): _____

Title/Position: _____

Email Address: _____

Contact Number: _____

2. Purpose

Confidential Information may be disclosed by DotCloud to the Receiving Party for the purpose of evaluating, engaging in, or performing business activities, including professional services, recruitment, placement activities and collaboration facilitated through DotCloud's proprietary platforms (including the Placement Application).

3. Definition of Confidential Information

"Confidential Information" means all information disclosed by or on behalf of DotCloud, whether orally, visually, electronically or in writing, that is designated as confidential or that reasonably ought to be regarded as confidential by its nature.

Confidential Information includes, without limitation: (a) business plans and strategies; (b) pricing, fee structures and commercial terms; (c) details of clients, candidates, employers, suppliers and partners; (d) personal information as defined in POPIA; (e) information relating to DotCloud platforms (including software, data, analytics and derived insights); and (f) intellectual property, know-how and proprietary processes.

4. Confidentiality Obligations

The Receiving Party shall: (a) keep Confidential Information strictly confidential; (b) use it solely for the Purpose; (c) not disclose it to any third party except to employees or advisers who have a legitimate need to know and are bound by written confidentiality obligations no less restrictive than this Agreement; and (d) protect it using at least a reasonable standard of care.

5. Non-Solicitation and Non-Circumvention

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During the term of this Agreement and for twelve (12) months following termination or expiry, the Receiving Party shall not, directly or indirectly, solicit, approach, engage with or contract with any candidate, client, employer, supplier or other business entity Introduced by DotCloud, nor circumvent DotCloud's commercial relationships or business opportunities, without DotCloud's prior written consent.

6. Data Protection (POPIA)

The Receiving Party shall process any personal information strictly in accordance with POPIA and solely on DotCloud's documented instructions, implement reasonable security safeguards, and notify DotCloud immediately and in any event within 24 hours of becoming aware of any actual or suspected personal information breach.

7. Compelled Disclosure

If the Receiving Party is required by law or court order to disclose Confidential Information, it shall (to the extent legally permitted) promptly notify DotCloud in advance and cooperate with DotCloud to seek protective measures. The Receiving Party shall disclose only the minimum portion legally required.

8. Exclusions

The obligations in this Agreement do not apply to information the Receiving Party can demonstrate: (a) is or becomes publicly available through no breach; (b) was lawfully in its possession prior to disclosure; or (c) is lawfully received from a third party without restriction.

9. Intellectual Property

No rights in DotCloud's intellectual property are granted under this Agreement. All such rights remain the exclusive property of DotCloud.

10. Return/Destruction

Upon DotCloud's request or upon termination/expiry, the Receiving Party shall promptly return or securely delete all Confidential Information and certify such deletion in writing if requested, save where retention is required by law.

11. Fees and VAT

Any reference to fees, costs or remuneration disclosed under this Agreement is exclusive of VAT unless expressly stated otherwise in writing.

12. Term and Survival

This Agreement remains in force from the Effective Date until terminated by either Party on written notice. Clauses relating to confidentiality, non-solicitation, IP, remedies, and return/destruction survive termination.

13. Remedies

The Receiving Party acknowledges that breach may cause irreparable harm. DotCloud is entitled to interdictory relief, specific performance and recovery of legal costs on an attorney-and-client scale, in addition to any other remedies available at law.

14. Governing Law and Jurisdiction (South African Courts Only)

This Agreement shall be governed by the laws of the Republic of South Africa. The Parties consent to the exclusive jurisdiction of the courts of South Africa for all disputes arising from or related to this Agreement.

15. Signatures

For DotCloud Consulting CC

Name: Charl Venter

Title: Member

Signature: *JC Venter*

Date: _____

For Receiving Party

Name: _____

Title: _____

Signature: _____

Date: _____